

CITY OF DORAL



Invitation to Bid

ITB No. 2024-13

Public Safety Uniforms, Accessories,
and Emergency Response Supplies



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Emergency Response Supplies
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NOTICE: Pursuant to its Procurement Ordinance, the City of Doral (“City”) is giving notice of its intent to seek bids from interested and qualified parties in response to this Invitation to Bid (“ITB”) to provide the services described herein. Bids must be received no later than the date and time specified below.

Bids must be submitted electronically through DemandStar (<https://network.demandstar.com/>) or Vendor Registry (<https://vendorregistry.com/>) by the above date and time. The Proposer is solely and strictly responsible for submitting a Bid before the stated time and date. The City is not responsible for any delayed, lost, late, misdelivered, or non-delivered Bids, no matter the cause. Any submittals received after the due date and time specified will not be considered.

This ITB is subject to the “Cone of Silence.” Accordingly, all questions and comments regarding this ITB must be written in writing and directed to Procurement at the following email address: procurement@cityofdoral.com. All inquiries must reference “ITB No. 2024-13 Public Safety Uniforms and Accessories” in the subject line. No phone calls will be accepted regarding this solicitation. If it becomes necessary to provide additional clarifying information that revises any part of this solicitation, supplements or revisions will be made available via written addendum.

PROJECT OVERVIEW

The City of Doral solicits formal bids to purchase uniforms, accessories, and emergency response supplies for public safety officers and support staff. The City intends to award a contract to one or more responsive and responsible vendors that provide the best price proposal to the City.

SCHEDULED

The City’s schedule for this ITB is as follows:

Issuance/Advertisement Date:	Wednesday, July 31, 2024.
Cut-off Date for Written Questions:	Tuesday, August 13, 2024 at 2:00 PM EST
Pre-Bid Conference:	N/A
Deadline for Submittals & Bid Opening:	Friday, August 30, 2024 at 2:00 PM EST Due Electronically via DemandStar or Vendor Registry

Solicitations and addenda or notices in connection, in addition to that, may be downloaded from the City of Doral Procurement Division webpage under “[Active Solicitations](#),” on [Vendor Registry](#), and on [Demand Star](#). To receive notifications of addenda or notices issued in connection with this ITB, interested parties

must register with the Vendor Registry or on Demand Star. The City reserves the right to reject any and all submissions, waive any and all irregularities in any submission, solicit and re-advertise for bids, and make awards in the City's best interest, as determined in its sole discretion.

The City reserves the right to accept any submittals deemed to be in the best interest of the City, to waive any minor irregularities, scrivener's errors, minor omissions, minor deviations, and technicalities in any Bids, or to reject any or all Bids and to re-advertise for new Bids, by the applicable sections of the Florida Statutes, the City Charter and Code, and this ITB. PROPOSERS ARE ADVISED THAT PROPOSALS OR BIDS SUBMITTED WITH IRREGULARITIES, DEFICIENCIES, AND TECHNICALITIES THAT DEVIATE FROM THE MINIMUM SUBMISSION REQUIREMENTS OF THIS SOLICITATION SHALL RESULT IN A NON-RESPONSIVE DETERMINATION. ONLY MINOR IRREGULARITIES, DEFICIENCIES, AND TECHNICALITIES MAY BE ALLOWED TO BE TIMELY CURED BY PROPOSERS AT THE SOLE DISCRETION OF THE CITY. MATERIAL IRREGULARITIES, DEFICIENCIES, AND TECHNICALITIES CANNOT BE CURED BY THE PROPOSER/RESPONDENT.

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ARTICLE 1 – GENERAL TERMS AND CONDITIONS

1.1 Definitions

“Authorized Representative” means the Department contact for interaction regarding contract administration.

“City” means the City of Doral, a duly organized municipality under the laws of the State of Florida. As the context indicates, this term may also refer to one of the various departments or agencies of the City of Doral.

“Contract” means the contractual agreement ultimately entered into by the City and the Successful Respondent(s) by the terms of this Solicitation and applicable laws.

“Department(s)” means the City department(s) and offices for which this solicitation is prepared, which will be the end user(s) of the goods and services sought.

“Procurement Division” means the office responsible for handling procurement-related matters within the City.

“Respondent(s)” means any person, individual, or entity submitting a response to this solicitation. The terms “Proposer” and “Bidder” are each interchangeable with “Respondent” and with each other and will be used as appropriate in the given context.

“Response(s)” means the written, sealed document submitted by the Respondent(s) according to the instructions outlined in this Solicitation. A response to this Solicitation shall not include verbal interactions with the City apart from a formal written submittal. The terms “Proposal” and “Bid” are each interchangeable with “Response,” and each will be used as appropriate in the given context.

“Solicitation” means this formal request to solicit responses from responsible and responsive respondents regarding the scope and specifications. The terms “Invitation to Bid,” “Request for Proposals,” “Request for Qualifications,” and the like are interchangeable with “Solicitation” and will be used as appropriate in the given context.

“Successful Respondent(s)” means the Respondent(s) whose response to this Solicitation is deemed by the City to be in the City’s best interest and who is awarded a contract in accordance with the terms of this Solicitation. The terms “Successful Proposer,” “Successful Bidder,” or “Contractor” are each interchangeable with “Successful Respondent” and will be used as appropriate in the given context.

“Work” means the actual task (i.e., goods and services to be provided) contemplated by this Solicitation and required by the terms of the Contract.

1.2 Cone Of Silence

This Solicitation shall be subject to the “Cone of Silence,” which shall mean a prohibition on any communication regarding a Solicitation between potential Respondent(s) or their lobbyists or representatives and the City Council, City staff including, but not limited to, the City Manager and his or her staff, and any member of the City’s selection or evaluation committee, except as otherwise explicitly provided herein.

The Cone of Silence shall be imposed upon this Solicitation after its advertisement and shall terminate upon the issuance of the City Manager’s recommendation to award. However, if the City Council refers the Manager’s recommendation back to the Manager or committee for further review, the Cone of Silence shall be re-imposed until the City Manager issues a recommendation after such additional review.

The Cone of Silence shall not apply to:

- Communications with the City Attorney;
- Oral presentations before evaluation committees;
- Public presentations made to the City Council during any duly noticed public meeting;
- Written communications regarding a particular Solicitation between a potential Respondent and the City’s Procurement Division, provided the communication is limited strictly to matters of process or procedure already contained in the Solicitation;
- Duly noticed site visits to determine the competency of bidders/Respondent(s) regarding a particular bid/proposal during the period between the opening of bids and the time the City Manager makes their written recommendation;
- Any emergency procurement of goods or services under the City Code;
- Responses to the City’s request for clarification or additional information;
- Contract negotiations during any duly noticed public meeting;
- Communications to enable City staff to seek and obtain industry comment or perform market research, provided all communications related to it are in writing or made at a duly noticed public meeting.

Please contact the City Attorney for any questions

concerning Cone of Silence compliance. Violation of the Cone of Silence by a Respondent shall render any award of this Solicitation to said Respondent voidable by the City Manager or Council.

1.3 Examination Prior to Submission

Respondents must thoroughly examine each section. If they have any doubt or obscurity about the meaning of any part of this Solicitation, They may request clarification by writing to the Procurement Division.

Respondents are required to be familiar with any conditions that may, in any manner, affect the Work to be done or affect the equipment, materials, or labor required. Respondents are also required to carefully examine the specifications, all equipment, and all site locations and be thoroughly informed regarding all conditions that may, in any manner, affect the work to be performed under the contract. By submission of a Response, it will be construed that the Respondent is acquainted sufficiently with the site(s) and work to be performed.

1.4 Clarifications and Addenda

Questions regarding this Solicitation shall be directed in writing by email to the Procurement Division at the email address specified in this Solicitation. Answers will be issued simultaneously to all registered Respondents. Suppose it becomes evident that this Solicitation must be amended. In that case, the City will issue a formal written addendum to all registered Respondent(s) via email or Vendor Registry and Demand Star. The addendum will be uploaded to the City's Procurement webpage.

No person is authorized to give oral interpretations of or make oral changes to the Solicitation. The issuance of a written addendum shall be the only official method of clarifying such a question. Only questions answered by written addenda shall be binding.

1.5 Withdrawal of Response

A Respondent(s) may, without prejudice, withdraw, modify, or correct the Response after it has been submitted to the City, provided the request and any subsequent modifications and corrections are filed with the City in writing before the deadline to submit the Response. The original Response, as modified by such writing, will be considered the Response submitted by the Respondent(s). No oral modifications will be considered.

1.6 Right To Cancel or Reject Responses

The City reserves the right to cancel this Solicitation or reject any and all Responses or portions thereof and to waive any technicalities or minor irregularities. Each Respondent agrees to hold harmless and covenant not to sue the City, its officials, officers, or employees for any claims arising out of or in connection with the administration, evaluation, recommendation, or rejection of Responses.

The City does not bind itself to accept the minimum specifications stated herein. Still, it reserves the right to accept any Response which, in the sole judgment of the City, will best serve the needs and interests of the City. This issuance of this Solicitation itself does not constitute a contractual agreement between the City and the Respondent(s) unless and until the City awards the Solicitation, obtains all required approvals, and executes a Contract in accordance herewith. Furthermore, the City reserves the right to award without further discussion.

The City also reserves the right to award the Contract on a split order basis, group by group, item by item, or such combination as will best serve the City's interests unless otherwise stated.

1.7 Protests

Protests of Solicitations and awards shall be submitted and resolved under City Code Section 2-338. Protests failing to meet all the filing requirements shall NOT be accepted. Failure of a party to file a protest promptly shall constitute a forfeiture of such party's right to file a protest. NO EXCEPTIONS WILL BE MADE TO THIS REQUIREMENT.

1.8 Incurred Expenses

The City shall not be responsible for any expenses incurred by any of the Respondents for preparing their Responses to this Solicitation or for any associated costs, including without limitation the cost incurred during any presentation or negotiations related to the potential award.

1.9 Preparation of Response

Responses should be prepared simply and economically, providing a straightforward, concise description of the Respondent's ability to fulfill the requirements of the Solicitation.

Responses shall include all of the information and forms required by this Solicitation. Failure to utilize the City's forms or fully complete said forms may result in the Response being deemed non-responsive. The

Respondent shall be considered non-responsive if its Response is conditioned on modifications, changes, or revisions to the terms and conditions of the Solicitation.

1.10 Submission of Responses & Evaluations

Acknowledgment by Respondent: By submitting a Response, the Respondent certifies that he/she has fully read and understands the Solicitation and has complete knowledge of the scope, nature, and quality of services to be performed or goods to be provided. Incomplete, unresponsive, irresponsible, vague, or ambiguous responses to the Solicitation will be cause for rejection, as determined in the sole discretion of the City.

Acceptance/Rejection/Modification: The City reserves the right to negotiate modifications to proposals deemed acceptable, reject any and all proposals, and waive minor irregularities in the submittals.

Postponement of Response Opening: The City reserves the right to postpone the date for receipt and opening of Response submissions and will make a reasonable effort to give prospective Respondents at least three (3) calendar days' notice, whenever practicable, of any such postponement.

Responses Binding: All Responses submitted in connection with this Solicitation shall constitute binding offers to the City for one hundred and eighty (180) calendar days after opening.

Alternate Responses: An alternate Response shall not be considered or accepted by the City.

Interviews: The City reserves the right to conduct interviews or require presentations before the award.

Samples: When required by this Solicitation, samples of any goods proposed to be provided by Successful Respondent must be furnished to the City free of charge. Materials or equipment for which samples are required shall not be used in work until the City approves. Each sample must be labeled with the Respondent's name and delivered within ten (10) calendar days of the Solicitation opening unless another timeframe is specified in this Solicitation. If samples are requested after the Solicitation opening, they should be delivered within ten (10) calendar days of the request. The City will not be responsible for returning samples. Acceptance or approval of a sample shall not be construed to change or modify any Contract requirements.

Inspections: The City, at its sole discretion, reserves the right to inspect Respondent's facilities or products, as

applicable, to determine their capability of meeting the contract's requirements.

Proprietary Responses: By submitting a Response, the Respondent acknowledges that the Response will become the property of the City and will not be returned to the Respondent. In the event of a Contract award, all documentation produced as part of the Contract will become the exclusive property of the City.

1.11 Prohibition Against Considering Social, Political, or Ideological Interests

Respondents are notified of the provisions of Section 287.05701, Florida Statutes, as amended, which provides that the City will not request documentation of or consider a Respondent's social, political, or ideological interests when evaluating Respondent's responsibility. Respondents are further notified that the City Council will not give preference to Respondents based on their social, political, or ideological interests.

1.12 Identical (Tie) Responses

Responses that are evaluated as being equal with respect to price, quality, and service for the procurement of commodities or contractual services (sometimes referred to herein as "Tie Bids") received from a business that certifies that it has implemented a drug-free workplace program shall be given preference in the award process provided the Respondent complies with the requirements of Section 287.087, Florida Statutes.

1.13 Public Records

This Solicitation and any Responses or other information provided by Respondents in connection in addition to that, including but not limited to any subsequent Contract, shall be subject to the provisions of Chapter 119, Florida Statutes ("Public Records Law"). Responses are exempt from public disclosure until the City provides notice of an intended decision or until 30 days after opening the Responses, whichever occurs earlier.

By submitting a Response, Respondent(s) acknowledges that the Response, the materials submitted with the Response, the results of the City's evaluation, and the subsequent Contract are open to public inspection upon proper request unless explicitly exempt under Florida law. Respondent(s) should note this as it relates to proprietary information that might be included in its Response.

In the event that a Respondent submits information to the City that is proprietary or otherwise exempt from the

Public Records Law, such Respondent shall explicitly indicate the information that is exempt from public disclosure, provide reasons why, and identify the applicable exemption with a reference to the applicable law allowing for the exemption. The City reserves the right to make any final determination on the applicability of the Public Records Law.

1.14 Compliance With Applicable Laws

Successful Respondent(s) shall comply with all local, state, and federal directives, ordinances, rules, orders, and laws applicable to this Solicitation and subsequent Contract. Lack of knowledge by the Respondent(s) will not be a cause for relief from responsibility. Respondents must be legally authorized to transact business in the State of Florida.

Non-compliance with all local, state, and federal directives, orders, and laws may be grounds for contract termination (s). If the Successful Respondent(s) observes that the Response or subsequent Contract is at variance with applicable laws, Successful Respondent(s) will give the City prompt written notice. If the Successful Respondent(s) performs knowing it is contrary to such laws, ordinances, rules, and regulations, such Successful Respondent(s) will bear all liability arising.

If any governmental restrictions are imposed that would necessitate altering the goods or services requested by this Solicitation and offered by the Successful Respondent before delivery or completion, it shall be the responsibility of the Respondent(s) to notify the City immediately. If the City determines that the alteration diminishes the City's bargained-for exchange or frustrates the project, the City reserves the right to accept or cancel the Contract.

1.15 Public Entity Crime

A person or affiliate who has been placed on the convicted Respondent list following a conviction for a public entity crime may not submit a Response on a contract to provide any goods or services to a public entity, may not submit a Response on a contract with a public entity for the construction or repair of a public building or Public Works project, may not submit a Response on a lease of real property to a public entity, may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity, and may not transact business with any public entity in excess of the threshold amount provided in Section 287.017, Florida Statutes for Category Two for a period of thirty-six (36) months from

the date of being placed on the convicted vendor list, as defined in Section 287.133, Florida Statutes.

1.16 Equal Employment Opportunity

The Respondent shall comply with Title VII of the Civil Rights Act of 1964 42 U.S.C. Section 2000e et seq., Section 504 of the Rehabilitation Act of 1973 29 U.S.C Section 701 et seq., and Title I of the Americans with Disabilities Act, 42 U.S.C Section 12101 as of 1990 in that: No person in the United States shall on the grounds of race, creed, color, national origin, sex, age, political affiliation, beliefs or disability be subject to discrimination under any program or activity which the Respondent has agreed to undertake by and through the covenants, and provisions outlined in this Contract.

1.17 Compliance with Occupational Health and Safety Act (OSHA) Standards

Respondent certifies that all materials, equipment, etc., contained in its Response meet all OSHA requirements. Respondent further certifies that if he/she is the Successful Respondent, and the materials, equipment, etc., delivered is subsequently found to be deficient in any OSHA requirement in effect on the date of use, all costs necessary to bring the materials equipment, etc., into compliance with the aforementioned requirements shall be borne by the Successful Respondent. Upon request, the contractor shall provide the City with a copy of their written safety program about the subject of the Contract if such a program is required by law.

The Successful Respondent shall be solely and entirely responsible for the conditions of the job site, including the safety of all persons (including employees) and property during the work performance. This requirement shall apply continuously and not be limited to normal working hours. Safety provisions shall conform to the U.S. Department of Labor OSHA, Florida Department of Labor, and all other applicable federal, state, county, and local laws, ordinances, codes, and regulations where any of these conflict; more stringent requirements shall be followed.

1.18 Scrutinized Companies

The respondent must certify that it is not participating in a boycott of Israel and must also certify that it is not on the Scrutinized Companies that Boycott Israel list, not on the Scrutinized Companies with Activities in Sudan List, and not on the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List. The contractor must submit the certification that is attached to this agreement. Submitting a false certification shall be deemed a material breach of contract. The City shall

have the right to terminate the Contract and seek civil remedies pursuant to Florida Statute § 287.135.

1.19 Fraud and Misrepresentation

Any individual, corporation, or other entity attempting to meet its contractual obligations with the City through fraud, misrepresentation, material misstatement, or omission of any material fact may be debarred per the applicable provisions of the City Code. As a further sanction, the City may terminate or cancel any other Contracts with such individual, corporation, or entity. Such individual or entity shall be responsible for all direct or indirect costs associated with termination or cancellation.

1.20 Collusion

Where two (2) or more related parties, as defined herein, each submits a Response to this Solicitation, such Responses shall be presumed collusive. The foregoing presumption may be rebutted by the presentation of evidence as to the extent of ownership, control, and management of such related parties in preparation and submission under such solicitation. Related parties shall mean employees, officers, or the principals thereof who have a direct or indirect ownership interest in another firm or in which a parent company or the principals of one Respondent have a direct or indirect ownership interest in another Respondent for the same Project. As provided above, responses found to be collusive or related shall be rejected.

1.21 Respondent in Arrears or Default

The Respondent represents and warrants that the Respondent is not in arrears to the City, City agency, or instrumentality and is not a default as a Contractor, Vendor, Provider or whose default has not been fully cured by the Respondent's surety or otherwise upon any obligation to the City. In addition, the Respondent warrants that the Respondent has not been declared "not responsible" or "disqualified" by, suspended, or debarred from doing business with any state or local government entity in the State of Florida, the Federal Government or any other State/local governmental entity in the United States of America, nor is there any proceeding pending pertaining to the Respondent's responsibility or qualifications to receive public agreements. The Respondent considers this warrant as stated in this section to be a continual obligation and shall inform the City of any change during the term of the Contract.

The City shall deem as non-responsible Respondents that the City has determined is in monetary arrears, in

debt, or default to the City when bids are due.

1.22 Conflict of Interest

By way of its Response, Successful Respondent recognizes and certifies that no elected official, board member, or employee of the City shall have a financial interest directly or indirectly in the Contract or any compensation to be paid under or through this transaction and further, that no City employee, nor any elected or appointed officer (including City Council members) of the City, nor any spouse, parent or child of such employee or elected or appointed officer of the City, may be a partner, officer, director or proprietor of Respondent, and further, that no such City employee or elected or appointed officer, or the spouse, parent or child of any of them, alone or in combination, may have a Material Interest in the Respondent. "Material Interest" for this subsection shall mean direct or indirect ownership of more than 5% of the Respondent's total assets or capital stock. Any exception to these above-described restrictions must be expressly provided by applicable law or ordinance and be confirmed in writing by the City. Further, Respondent recognizes that with respect to its Response to this Solicitation, if any Respondent violates or is a party to a violation of the ethics ordinances or rules of the City, the provisions of Miami-Dade County Code Section 2-11.1, as applicable to City, or the provisions of Chapter 112, part III, Fla. Stat., the Code of Ethics for Public Officers and Employees, such Respondent may be disqualified from furnishing the goods or services for which the Response is submitted and may be further disqualified from submitting any future Responses for goods or services to City. The respondent must complete and execute the Business Entity Affidavit form.

1.23 Assignment or Transfer

The Successful Respondent shall not assign, transfer, convey, sublet, or otherwise dispose of its interest in the Solicitation or the subsequent Contract, including any or all of its right, title, or interest therein, or its power to execute such Contract to any person, company or corporation without the prior written consent of the City at its sole and absolute discretion.

Further, in the event that the majority ownership or control of the Successful Respondent changes subsequent to the award of this Solicitation or Contract, Successful Respondent shall promptly notify City in writing of such change at least thirty (30) days prior to such change and the City shall have the right to terminate the contract, at City's sole discretion.

1.24 City Property

Unless explicitly provided otherwise in this Solicitation, property owned by the City which may be furnished for repair, modification, study, etc., shall remain the property of the City. The Successful Respondent shall be liable for any and all damages to City-owned property occurring while in the Successful Respondent's possession. Damages occurring to such property while en route to the City shall be the responsibility of the Successful Respondent. In the event that such property is destroyed or declared a total loss, the Successful Respondent shall be responsible for the replacement value of the property at the current market value, less depreciation of the property, if any, plus any other damages incurred by the City as a result of such loss.

Where Successful Respondents are required to enter onto City real property to deliver materials or to perform work or services in connection with a Contract, the Successful Respondent will assume the full duty, obligation, and expense of obtaining all necessary licenses, permits, inspections, and insurance required. The Successful Respondent shall be liable for any damages or loss to the City occasioned by the negligence of the Successful Respondent (or their agent, representatives, or invitees).

1.25 Termination For Default

If the Successful Respondent defaults in its performance under the Contract and does not cure the default within thirty (30) days after written notice of default, the City Manager may terminate this Contract, in whole or in part, upon written notice without penalty to the City. In such event, the Successful Respondent shall be liable for damages, including the excess cost of procuring similar supplies or services, provided that if (1) it is determined for any reason that the Successful Respondent was not in default or (2) the Successful Respondent's failure to perform is without his control, fault or negligence, the termination will be deemed to be a termination for the convenience of the City.

1.26 Termination For Convenience

The City Manager may terminate the Contract, in whole or in part, upon 30 days prior written notice when it is in the City's best interests. If the Contract is for supplies, products, equipment, or software and so terminated for the convenience of the City, the Successful Respondent will be compensated solely for the supplies, products, equipment, or software delivered to and accepted by the City before termination. To the extent that this Contract is for services, and so terminated, the City of Doral shall be liable only for payment in accordance with the

Contract's payment provisions for those services rendered prior to termination. Except as expressly provided herein, the City shall not be liable for any damages incurred by the counterparty to the Contract in connection with such termination.

1.27 Confidentiality

The City is subject to the Florida Sunshine Act and Public Records Law as a political subdivision. If the Contract contains a confidentiality provision, it shall have no application when disclosure is required by Florida law or upon court order.

1.28 Anti-Trust/Non-Exclusivity

At such times as may serve its best interest, the City reserves the right to advertise for, receive, and award additional Contracts for the goods and/or services specified in this Solicitation and to make use of other contracts for the purchase of these goods and/or services as may be available.

In case of the Successful Respondent's default or failure to provide the goods and/or services indicated in the Contract, the City may procure the applicable goods and/or services from other sources and hold the Successful Respondent responsible for any excess costs incurred thereby, including, without limitation and as applicable, by retaining any amounts held by the City.

1.29 Quantities

The City does not guarantee or warranty the total amount that may or may not be purchased from any resultant Contract. Any quantities included are for bidding purposes only and will be used for tabulation and presentation. The City reserves the right to increase or decrease quantities as required reasonably.

1.30 Audit Rights and Records Retention

The Successful Respondent agrees to provide access to the City, or any of their duly authorized representatives, to any books, documents, papers, and records of the Successful Respondent that are directly pertinent to the Contract for the purposes of audit, examination, excerpts, and transcriptions. The Successful Respondent shall maintain and retain any and all of the aforementioned records for a minimum of three years after the contract's expiration and/or termination.

1.31 Capital and Other Expenditures

Successful Respondent understands that any capital expenditures that the Successful Respondent makes, or prepares to make, to provide the goods or perform the services required by the City under the Contract is a

business risk which the Successful Respondent must assume. The City will not be obligated to reimburse amortized or unamortized capital expenditures or any other expenses unless otherwise explicitly agreed to by the City in writing and as part of the Contract.

1.32 Governing Law and Venue

The State of Florida's laws shall govern the Contract's validity and effect. The Successful Respondent agrees that any action, mediation, or arbitration arising from the Solicitation or Contract shall occur in Miami-Dade County, Florida.

1.33 Attorney Fees

In connection with any litigation, mediation, or arbitration arising out of this Contract, each party shall be responsible for their own attorney fees through and including appellate litigation and any post-judgment proceedings.

1.34 Disputes

If any dispute concerning a question of fact arises under the Contract, other than termination for default or convenience, the Successful Respondent and the City department responsible for the administration of the Contract shall make a good faith effort to resolve the dispute. If the dispute cannot be resolved by mutual agreement, then the City Attorney shall resolve it and send a written copy of its decision to the Successful Respondent, which shall be binding on both parties.

1.35 Waiver of Jury Trial

The City and the Successful Respondent knowingly, irrevocably, voluntarily, and intentionally waive any right either may have to a trial by jury in State or Federal Court proceedings concerning any dispute arising out of the Contract or the performance of the Work thereunder.

1.36 No Partnership or Joint Venture

Nothing contained in this Solicitation or Contract will be deemed or construed to create a partnership or joint venture between the City and Successful Respondent or to create any such relationship between the parties.

The Successful Respondent is an independent entity under the Contract. Services provided by the Successful Respondent shall be by employees of the Successful Respondent and subject to supervision by the Successful Respondent, and not as officers, employees, or agents of the City. Personnel policies, tax responsibilities, social security and health insurance, employee benefits, purchasing policies, and other similar administrative procedures applicable to services

rendered under the Contract shall be those of the Successful Respondent.

1.37 Severability

If any provision of the Contract or its application to any person or situation shall be held invalid or unenforceable to any extent, the remainder of the Contract and the application of such provisions to persons or situations other than those as to which it shall have been held invalid or unenforceable shall not be affected thereby and shall continue in full force and effect and be enforced to the fullest extent permitted by law.

1.38 Indemnification

The Successful Respondent granted a Contract with the City as a result of this Solicitation shall indemnify and hold harmless the City, its officers, agents, directors, and employees from liabilities, damages, losses, and costs, including, but not limited to all reasonable attorney's fees and costs, to the extent caused by the error, omission, negligence, recklessness or intentional misconduct of the Successful Respondent or its agents, employees, or subcontractors or consultants, arising out of or in connection with this Solicitation or the Contract. These indemnifications shall survive the term of the Contract. In the event that any action or proceeding is brought against City by reason of any such claim or demand, the Successful Respondent shall, upon written notice from City, resist and defend such action or proceeding by counsel satisfactory to City. The Successful Respondent expressly understands and agrees that any insurance protection required by this Contract or otherwise provided by the Successful Respondent shall not limit the responsibility to indemnify, keep, and save harmless and defend the City or its officers, employees, agents, and instrumentalities as herein provided.

The indemnification provided above shall obligate the Successful Respondent to defend at its own expense to and through appellate, supplemental, or bankruptcy proceedings or to provide for such defense, at City's option, any and all claims of liability and all suits and actions of every name and description which may be brought against City whether performed by the Successful Respondent or persons employed or utilized by the Successful Respondent. This indemnity will survive the cancellation or expiration of the Contract.

This indemnity will be interpreted under the laws of the State of Florida, including, without limitation, in a manner that conforms to the limitations of §768.28, §725.06, and/or §725.08, Florida Statutes, as applicable and as amended.

The Successful Respondent shall require all sub-consultants and subcontractors' agreements to include a provision specifying that they will indemnify and hold harmless the City in the manner substantially set forth above.

The Successful Respondent agrees and recognizes that the City shall not be held liable or responsible for any claims which may result from any actions or omissions of the Successful Respondent in which the City participated either through review or concurrence of the Successful Respondent's actions. In reviewing, approving, or rejecting any submissions by the Successful Respondent or other acts of the Successful Respondent, the City in no way assumes or shares any responsibility or liability of the Successful Respondent or subcontracted entities under the Contract.

Successful Respondent warrants that there has been no violation of copyrights or patent rights in submitting their Response or providing the goods or services requested by this Solicitation. The Successful Respondent shall pay all royalties and assume all costs arising from the use of any invention, design, process materials, equipment, product or device subject to patent rights or copyrights. Successful Respondent shall, at its own expense, hold harmless and defend the City against any claim, suit or proceeding brought against the City which is based upon a claim, whether rightful or otherwise, that the goods or services, or any part thereof, furnished under the contract, constitute an infringement of any patent or copyright of the United States. The Successful Respondent shall pay all damages and costs awarded against the City.

1.39 City Rights as Sovereign

Notwithstanding any language contained in this Solicitation or subsequent Contract, Successful Respondent understands that the City retains all of its sovereign prerogatives and rights as a municipality under applicable laws, including, but not limited to, any regulatory authority and approvals. Neither the issuance of this Solicitation nor any subsequent Contract shall constitute a waiver of the City's rights as sovereign. In no event shall the City have any obligations or liabilities to the Successful Respondent under the Contract or otherwise on account of the City's exercise of its sovereign prerogatives and rights and regulatory authority (quasi-judicial or otherwise) as a municipal government.

1.40 Time is of the Essence

Successful Respondent understands and agrees that

time is of the essence in the completion and delivery of the goods and/or services to be provided in connection with the Solicitation and subsequent Contract.

The contractor will promptly perform its duties under the Contract and will give the Work as much priority as is necessary to cause the Work to be completed on a timely basis in accordance with the Contract. All Work shall be performed strictly (not substantially) within the time limitations necessary to maintain the critical path and all deadlines established in the Contract. Time is of the essence in the performance of the Work.

1.41 Delivery

The delivery of all goods required by this Solicitation and resultant Contract shall be delivered F.O.B. Destination (i.e., at a specific City-designated address), and delivery costs and charges (if any) will be included in the quoted price. Exceptions shall be noted.

Goods or material(s) delivered to the City pursuant to this Solicitation and resultant Contract shall remain the property of the Successful Respondent until accepted to the satisfaction of the City. In the event goods or materials delivered to the City are found to be defective or do not conform to specifications, the City reserves the right to reject or return the same to the Successful Respondent at the Successful Respondent's expense. Rejected goods left longer than thirty (30) calendar days will be regarded as abandoned, and the City shall have the right to dispose of them as its own property. Rejection for non-conformance or failure to meet delivery schedules may result in the Contractor defaulting.

1.42 Brand Names

Unless otherwise explicitly provided in this Solicitation, if a brand name, make, manufacturer trade name or vendor catalog is mentioned, whether followed by the words "approved equal" or otherwise, it is the intent of the City that such name is included for the purpose of establishing a grade or quality of material only. The respondent may offer alternatives of equal quality and appropriateness for the City's needs with appropriate identification, samples, and/or specifications. The City shall be the sole judge concerning the merits of items as equals.

1.43 Contract Amendments

The Contract(s) that result from this Solicitation may not be modified except pursuant to written amendment executed by both the City and the Successful Respondent or their authorized successors or assigns.

1.44 Conflicts and Order of Precedence

This Solicitation and Contract shall be read together to avoid any conflicts. However, in the event of a conflict or inconsistency between this Solicitation or any exhibit attached hereto, any document referred to herein, or any document incorporated into this Solicitation and Contract by reference, and a term, statement, requirement, the Response by Successful Respondent, specifications and plans prepared by the Successful Respondent, if applicable, or provision of the Contract the following order of precedence shall apply:

In the event of any conflicts between the Contract and Solicitation, the Contract, as may be amended, shall govern. Where there appears to be a conflict between the General Terms and Conditions, Special Terms and Conditions, the Technical Specifications, or any addendum issued, the order of precedence shall be the last addendum issued, the Technical Specifications, the Special Terms and Conditions, and then the General Terms and Conditions.

In the event of conflicts within the Contract, as amended, the priorities stated below shall govern, as applicable:

- Scope of Work and Specifications shall govern over the Response, including without limitation any plans and drawings submitted thereby;
- Larger scale drawings shall govern over smaller scale drawings;
- Figured or numerical dimensions shall govern over dimensions obtained by scaling and
- Where provisions of codes, manufacturer's specifications, or industry standards conflict, the more restrictive or higher quality shall govern.

1.45 Contract Interpretation and Construction

The singular includes the plural. "Shall" is mandatory, and "may" is permissive. The masculine gender includes the feminine and neuter. The words "furnish" and "furnish and install," "install," and "provide" or words with similar meaning shall be interpreted, unless otherwise specifically stated, to mean "furnish and install complete in place and ready for service."

Miscellaneous items and accessories that are not explicitly mentioned but essential to produce a complete and properly operating product providing the function indicated shall be furnished and installed without change in the Contract price. Such miscellaneous items and accessories shall be of the same quality standards, including material, style, finish, strength, class, weight, or other applicable characteristics as specified for the major component of which the miscellaneous item or

accessory is an essential part and shall be approved by the City before installation. The above requirement is not intended to include major components not covered by or inferable from the Response and Contract specifications.

1.46 Rights and Remedies

The duties and obligations imposed by this Solicitation and Contract and the rights and remedies available thereunder, and, in particular but without limitation, the warranties, guarantees, and obligations imposed upon Successful Respondent and those rights and remedies available to the City, shall be in addition to, and shall not be construed in any way as a limitation of, any rights and remedies available by law, by special guarantee or by other provisions of the Contract.

1.47 Inspection of Project Records

The City shall have the right to inspect and copy during regular business hours at the City's expense, the books and records and accounts of Successful Respondent which relate in any way to the Contract and to any claim for additional compensation made by Successful Respondent, and to conduct an audit of the financial and accounting records of Successful Respondent, which arise out of the Contract. Successful Respondent shall retain and make all such books and records and accounts available to City, financial or otherwise, which relate to the Contract and any claim for three (3) years following the final completion of the underlying project at no cost to the City. During the implementation of the work contemplated under the Contract and the three (3) year period following final completion, the Successful Respondent shall provide the City access to such books and records upon five (5) days written notice.

1.48 Notice

Whenever any provision of the Contract requires the giving of written notice, it shall be deemed to have been validly given if delivered in person to the individual or to a member of the firm or to an officer of the corporation for whom it is intended, or if delivered at or sent by registered or certified mail, postage prepaid, to the last business address known to them who gives the notice.

1.49 Payment

The City as a municipal corporation is subject to the Local Government Prompt Payment Act, Chapter 218, Part VII, Fla. Stat., as amended. Payments made by the City shall not preclude the City from disputing any items or services billed under this Contract and shall not be construed as waiver or acceptance of any part of the goods or services.

1.50 Taxes

The cost of all applicable sales, use, and other taxes for which Respondent is liable under the Contract shall be included in the prices quoted provided by Respondent.

1.51 Employees

Successful Respondent shall be responsible for the appearance of all working on-site personnel assigned to the work in connection with the Contract (clean and appropriately dressed at all times). On-site personnel always supply proper identification upon request.

All employees of the Successful Respondent shall be considered at all times the sole employees of the Successful Respondent, under the Successful Respondent's sole direction, and not an employee or agent of the City. The Successful Respondent shall supply competent, suitably qualified, and capable employees, and the City may require the Successful Respondent to remove any employee it deems careless, incompetent, insubordinate, or otherwise objectionable and whose presence on City property is not in the City's best interest. The City shall not have any duty to implement or enforce such requirements.

Each employee of the Successful Respondent shall be a citizen of the United States or an alien who has been lawfully admitted for permanent residence, as evidenced by an Alien Registration Card. The Successful Respondent agrees not to employ any person undergoing a sentence of imprisonment except as otherwise provided by applicable laws.

1.52 Subcontractors or Suppliers

Before the commencement of any work pursuant to the Contract, the Successful Respondent shall furnish, in writing to the City, the names of all persons/entities (including those who are to furnish materials or equipment fabricated to a special design), if any, proposed for each principal portion of the work. In writing, the City shall notify the Successful Respondent of any proposed person or entity to which the City has an objection. The Successful Respondent will not employ any subcontractor or supplier against whom the City may have reasonable objection. Nor will the Successful Respondent be required to employ any subcontractor or supplier accepted by the City unless the City determines that there is good cause for doing so or

if the terms of this Solicitation or Contract specify otherwise.

The Successful Respondent shall be fully responsible for all acts and omissions of their subcontractors and/or suppliers, of persons and organizations directly or indirectly employed by them, and of persons and organizations for whose acts any of them may be liable to the same extent that they are responsible for the acts and omissions of persons directly employed by them.

All work performed for the Successful Respondent by a subcontractor, supplier, or other person will be pursuant to an appropriate agreement between the Successful Respondent and such person. All agreements between the Successful Respondent and all subcontractors, suppliers, or others shall specifically bind the subcontractor, supplier, or other person to all applicable terms and conditions of the Contract for the City's benefit. Nothing in the Contract shall create any contractual obligation or liability on the part of the City to any subcontractor, supplier, or other person having a direct contract with Successful Respondent, including without limitation any payment to any such person, except as may otherwise be required by law.

1.53 Extensions

The City reserves the right to automatically extend the Contract for up to one hundred twenty (120) calendar days beyond the stated contract term to provide City departments with continual service and supplies while a new contract is being solicited, evaluated, negotiated, and/or awarded. If the right is exercised, the City shall notify the Contractor, in writing, of its intent to extend the Contract at the same price, terms, and conditions for a specific number of days. Additional extensions over the first one hundred twenty (120) days may occur if the City and the Contractor mutually agree with such extensions.

1.54 Hiring Preference for Procured Projects

To the extent applicable, Successful Respondent shall comply with City Code Section 2-325 provisions, providing a preference for Doral Businesses and Residents in Public Works and Improvements Contracts unless otherwise prohibited by applicable law or grant requirement.

[END OF SECTION]

ARTICLE 2 – SPECIAL TERMS AND CONDITIONS

2.1 Qualifications

The City wishes to engage firms that are regularly engaged in the business of providing the goods and/or services described herein. The awarded firm(s) must have sufficient financial support, equipment, and organization to ensure that they can satisfactorily perform if awarded a Contract under the terms and conditions herein stated.

All respondents that submit a proposal that includes uniforms shall meet, but not be limited to, the following minimum qualifications:

- Must be able to embroider badges, name tapes, and City Seals.
- Must be able to hem and sew on property.
- Must be able to produce and sew patches.
- Must have a physical location within a 50-mile radius from the City of Doral Police Department.

2.2 Licensing

Successful Respondent(s) must provide a copy of their occupational/business license and State registration at the time of the award. Failure to possess and maintain the proper license(s) and/or certification(s) may result in disqualification of proposal submittal or termination of the Contract after award. Under section 607.1503(1), Florida Statutes, Corporations and out-of-state corporations must obtain a Florida Certificate of Authorization from the Florida Department of State, Division of Corporations, to transact business in the State of Florida.

2.3 Bid Submittal Instructions

Bids must be submitted in the format and on the forms provided by this Solicitation as Exhibit A and Exhibit B. Bids must be typed or printed in black or blue ink only. The use of erasable ink is not permitted. All corrections must be initialed. Any information submitted as part of the response may be attached behind the required forms. Responses by corporate entities must be executed in the corporate name by the President or other corporate officer, accompanied by evidence of authority to sign. The corporate address and state of incorporation must be shown below the signature. Proposals by partnerships must be executed in the Partnership name and signed by a partner whose title must appear under the signature. The official address of the partnership must be shown below the signature.

2.4 Exceptions

Exceptions to the specifications shall be listed on the Solicitation Response Form, and the applicable section shall be referenced. The City reserves the right to deem Respondents as non-responsive if exceptions are taken to material terms, as determined by the City in its sole discretion.

2.5 Basis and Method of Award

Bidders must fill out and submit the price sheet attached and incorporated as Exhibit B. Bids shall be on an extended unit price basis (based on the unit price and estimated quantities). Additionally, the City shall give preference to a responsive and responsible respondent who is a certified veteran business enterprise in accordance with the provisions outlined in City Code Section 2-324(2)(a).

Award of this contract will be made to up to two (2) vendors, a primary and secondary, for each group of items. Award will be made to the lowest priced responsive, responsible respondents on a group-by-group basis for the following groups:

- Groups 1-3
- Group 4
- Group 5
- Group 6

To be considered for award by a group, the respondent shall offer prices for all items within that group. The City will then select the respondents for the award for each group by totaling either the unit prices for all of the items within each group or, if so structured, the extended pricing for each item within each group. If the City determines that an insufficient number of respondents offered all of the items in a group, the City may, at its option, award the items contained in each group on a line by line basis to the vendor that has the lowest cost for such line items. The City reserves the right to award in any manner that the City determines to be in its best interest.

While the award may be made to multiple respondents to ensure availability, the primary respondent will be given the first opportunity to perform under this contract. Awarding multiple respondents is made for the convenience of the City and does not exempt the primary respondent from fulfilling its contractual obligations. Failure to perform as noted may result in the respondent being deemed in breach of contract. If applicable, the City may terminate the contract for default and charge the respondent re-procurement costs.

The City will open all submittals received before the stated deadline in a public forum and announce the names and bid amounts submitted. The city will then review and evaluate all submittals for bid compliance according to the requirements outlined in this ITB.

To be deemed responsive, the bids must meet or exceed this ITB's minimum requirements and provide all required forms. Respondents considered for an award must also be responsible. In awarding a contract to Respondent(s), the City reserves the right to consider such Respondent's price, responsiveness, and responsibility, including but not limited to its capacity to perform, such as a performance record, references, staffing, materials, experience, etc. The City, at its sole discretion, reserves the right to inspect Respondents' facilities to determine their capability of meeting the requirements for the Contract. The City of Doral shall be the sole judge in determining the Respondent's qualifications and responsibilities.

Upon approval of the City Council, a contract shall be awarded to one (1) or more Respondents selected as the most responsible, responsive Respondent(s), meeting all specifications and providing the lowest pricing per group. Any award made shall be subject to the execution of the contract in a form and substance which the City Attorney approves. The City of Doral reserves the right not to award or to reject proposals from vendors that are currently in litigation with the City of Doral or as a result of any prior lawsuit with the City of Doral.

2.6 Contract Term

The initial term of this contract is expected to be a three (3) year initial term with two (2) additional one (1) year options to renew for a total of five (5) years. the City and the Awarded Respondent(s) shall execute a contract within thirty (30) days after Notification of the Award based upon the requirements outlined in the ITB through action taken by the City Council at a fully authorized meeting. If the Respondent awarded the contract fails to enter into a contract as herein provided, the award may be declared null and void, and the contract may be awarded to the next most responsible and responsive Respondent or re-advertised, as determined by the City.

The awarded Respondent(s) shall maintain the same terms and conditions in the originally awarded contract for the entire term, including renewal options. Continuation of the contract beyond the initial period and any option subsequently exercised is a City prerogative and not the right of the awarded Respondent(s).

2.7 Insurance Requirements

The contractor shall maintain the insurance requirements outlined in the attached Exhibit C at their sole expense and during the term of this agreement.

2.8 Goods and/or Services Added or Deleted

Additional goods or services may be added to or removed from this Contract at the City's option. The Awarded Respondent shall be invited to submit price quotes for these additional goods/services. If these quotes are fair and reasonable, the additional goods/services will be awarded to the Awarded Respondent(s) as needed.

2.9 Consideration of Equal Products

The manufacturer's name and style number used is being provided for the sole purpose of establishing the minimum requirement of color, level of quality, standard of performance, and design and are in no way intended to prohibit the offer of another manufacturer's items or mill's cloth of equal quality, style, and color, unless otherwise indicated on the Bid/Proposal Submission Form.

If an "equal" product is to be considered by the City in accordance with the Bid/Proposal Submission Form, the product shall be equal in style, color, quantity, and standards of performance to the item specified in the solicitation. For product information submittals, all supporting documentation submitted by the offeror must, in total, meet the required specifications outlined in this solicitation. If samples of all "or equal" items bid are required for evaluation, such items must be provided at no cost to the City. The City shall be the sole judge of equality based on its best interests, and its decision shall be final. Items labeled "No Substitute" on the City's Bid/Proposal Submission Form are the only products that will be accepted under this solicitation. Matching existing uniform color(s) to the product bid is of primary importance.

Prior approval is not required for equivalent "equal" products, nor should they be submitted with the respondent's response to this ITB. The City will evaluate all responses received and then narrow the responses to those respondents considered for award. At that time, any respondents who submitted equivalent items may be asked to provide samples for evaluation and approval before any award may be made.

2.10 Delivery of Ordered Products

The respondent shall make deliveries within thirty (30) calendar days after the date of the applicable order. All deliveries shall be made in accordance with good commercial practice, and all required delivery timeframes shall be adhered to by the respondent(s), except in such cases where the delivery will be delayed due to acts of nature, strikes, or other causes beyond the control of the respondent. In these cases, the respondent shall notify the City of the delays before the original delivery date so that the City can appropriately consider a revised delivery schedule.

Should the Respondent(s) to whom the contract(s) is awarded fail to deliver in the number of days stated above, the City reserves the right to cancel the contract on a default basis after any back-order period specified in this contract has lapsed. If the contract is terminated, it is understood and agreed that the City has the authority to purchase the goods elsewhere and charge the incumbent respondent with any re-

procurement costs. Certain City employees may be authorized in writing to pick up materials under this contract. Respondent(s) shall require presentation of this written authorization. The respondent shall maintain a copy of the authorization. If the Respondent(s) doubts any aspect of material pick-up, the Respondent(s) shall contact the appropriate user department to confirm the authorization.

All orders placed before the expiration of the contract and accepted by the successful vendor(s) will be invoiced at the bid unit price(s). However, deliveries may be made after the expiration of the contract.

2.11 Warranty

Contractor(s) shall warrant all products and materials to be free of defects for the same amount of time as the manufacturer's warranty, but in no event less than one (1) year. The awardee will be responsible for repairing or replacing each unit during the warranty period at no cost to the City. Awardees must agree to repair, return, or replace items within five (5) days from receipt of request or provide a temporary replacement.

2.12 Returns and Exchanges

Awardees must allow for the return and exchange of uniforms. Items in original condition may be returned or exchanged; items that have been washed, worn, or embroidered cannot be returned.

2.13 Sustainability

Any respondent contracting with the City must purchase products or materials with recycled content when those products or materials are available at reasonable prices within a reasonable period unless the products or materials fail to meet reasonable performance standards. If the decision was made not to use recycled products, the respondent shall provide the City with a written statement indicating the basis for the decision.

[END OF SECTION]

ARTICLE 3 – SCOPE OF WORK / TECHNICAL SPECIFICATIONS

3.1 Purpose and Intent

The City of Doral is seeking bids to establish one or more contracts for purchasing uniforms for public safety officers at firm-fixed prices on an as-needed basis, as more particularly described herein.

3.2 Pricing

If the Respondent is awarded a contract under this ITB solicitation, the prices quoted by the Respondent shall remain fixed and firm throughout the contract's life. However, the Respondent may offer incentives and discounts from this fixed price to the City at any time during the contractual term. The City reserves the right to negotiate lower pricing for the additional term(s) based on market research information or other factors influencing price.

3.3 Bid Price Sheet

3.3.1 Complete the provided Bid Price Sheet as your cost proposal.

3.3.2 Cost proposal shall be in the format provided by the City.

3.3.3 An alternate cost proposal will not be accepted.

3.3.4 Cost is to be all-inclusive of standard shipping, handling, freight, or any other standard expenses.

3.3.5 Ranges are not acceptable. The highest cost shall be used for evaluation if ranges are provided.

3.3.6 This contract is for an indefinite quantity, and the City may require more or less than the amounts indicated in the Bid Price Sheet. Amounts in that attachment are best usage estimates, but actual future usage may vary.

3.4 Background and Budget Information

3.4.1 Quantities reflected in the Bid Price Sheet are for evaluation purposes based on past purchases. The City may order more or less than indicated in that document based on need.

3.4.2 The FY 23/24 Uniform budget is approximately \$300,000.00.

3.4.3 The Doral Police Department estimates that approximately 200 uniformed members will be issued one to three uniform sets, depending on their assignments within the Department.

3.4.4 This contract will be utilized by sworn law enforcement officers, supporting staff, and other divisions.

3.5 Sizing

For uniforms, respondents may be required, at the City's sole discretion, to perform initial measurements, fitting, and alterations of uniforms for all public safety personnel at their local shop or at a location specified by the City of Doral.

3.6 Samples

The City will evaluate all responses received and then narrow the responses to those respondents considered for award. At that time, any respondents who submitted equivalent items may be asked to provide samples for evaluation and approval before any award(s) may be made. Requested samples will not be returned and must be identified by providing the respondent's name on each garment.

3.7 Specifications

Complete technical specifications providing the same or equivalent brand name and model number of the items shall accompany the bid proposal. The manufacturers' specifications shall match the "Manufacturer/Material" column of the document titled "2024-13 Bid Price Sheet." If not manufacturer or model/item number is provided, the respondent must provide that information on their response as support. The specifications indicated provide the highest quality equipment, garments, and detailed workmanship to City of Doral Public Safety personnel. Non-compliance with this condition may cause the item not to be considered for award.

[END OF SECTION]

ARTICLE 4 – REQUIRED SUBMISSION FORMS

INTERESTED RESPONDENTS SHALL SUBMIT THE FOLLOWING FORMS IN THE EXACT SEQUENCE PROVIDED, INCLUDING INSERTION OF DOCUMENTS WHERE SPECIFIED.

The required submission forms are attached to this Solicitation as Exhibit A and are inclusive of the following:

1. Solicitation Response Form
2. Respondent Qualification Statement
3. Certificate of Authority
4. Respondent/Proposer Affidavits
 - Conflict of Interest
 - Compliance with Foreign Entity Laws
 - E-Verify Program Affidavit
 - No Contingency Affidavit
 - Public Entity Crimes
 - Copeland “Anti-Kickback” Act Affidavit
 - Disability Non-Discrimination & Equal Employment Opportunity
 - Conformance with OSHA Standards
 - Non-Collusion Affidavit
 - Drug-Free Workplace Program
 - Code of Silence Certification
 - Bidder Certification